

Seema Mishra v. State of U.P. and 5 Others

High Court of Judicature at Allahabad · Division Bench · 26 July 2023 · 2023:AHC:149460-DB · WRIT-C No. 21075 of 2023 · **Writ disposed; pre-deposit modified; CGRF to decide bill in three months**

HEADNOTE

A writ against a disputed electricity bill already pending before the Consumer Grievance Redressal Forum under clause 7.10 of the U.P. Electricity Supply Code, 2005 was disposed of without deciding the bill. The Forum's direction to deposit 40 per cent was modified, Rs.1,50,000 already deposited was treated as sufficient to continue supply subject to current bills, and the Forum was left to decide the dispute on merits within three months.

FACTUAL SUMMARY

Seema Mishra disputed a bill dated 14 June 2022 for Rs.9,45,762.71. Her own calculation for nine years from installation of the meter was about Rs.1,50,000, which the Power Corporation contested. She had already moved the Consumer Grievance Redressal Forum under clause 7.10 of the U.P. Electricity Supply Code, 2005, and on 26 June 2023 the Forum directed a 40 per cent deposit. She filed this writ to stop disconnection and to seek a correct bill. She deposited Rs.1,50,000 under the order dated 18 July 2023.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::7.10

disputed bill pending before CGRF

HOLDING

Adjudication of the disputed bill before the Consumer Grievance Redressal Forum under clause 7.10 of the U.P. Electricity Supply Code, 2005 had yet to take place. The Rs.1,50,000 deposited under the order dated 18 July 2023 was a sufficient deposit for the time being to continue supply, the consumer remaining liable to pay bills generated from time to time. To that extent the Forum's order dated 26 June 2023 directing a 40 per cent deposit was modified, and the Forum may decide the dispute on merits within three months. The writ petition was disposed of on those observations. ¶ 4-7

PRINCIPLE TAGS

disputed-bill-relegated-to-cgrf-clause-7.10 The bill of Rs.9,45,762.71 was already before the Consumer Grievance Redressal Forum under clause 7.10 and had not been adjudicated. The writ was disposed of without deciding the bill, the Forum's 40 per cent deposit order was modified, and the Forum was left to decide the dispute on merits within three months. ¶ 4-7

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — MERITS OF THE DISPUTED ELECTRICITY BILL, INCLUDING THE BILL DATED 14 JUNE 2022 FOR RS.9,45,762.71 AND THE LATER BILL AND DISCONNECTION MESSAGE

Left to the Consumer Grievance Redressal Forum, which may decide the dispute on merits within three months ¶ 6